

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AURA DOLEA CASTANON,

Petitioner

VS.

HECTOR FIDENCIO PEREZ,

Respondent

) Case Number: FDI-19-791343

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL-CIVIL; REQUEST FOR
ORDER PROPERTY CONTROL, ENFORCEMENT OF FOAH TO SELL PROPERTY AND
REQUEST FOR ELISOR TO SIGN

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Aura Castanon (Wife) and Respondent Hector Perez (Husband) married on 9/11/2002
and separated on 3/5/2019, for a marriage of 16 years and 5 months. The parties have one adult
child, Franchesco (DOB: 12/12/2005, age 20). Wife is represented by attorney Kathleen Morgan.
Husband is represented by attorney Crisostomo Ibarra.
- 2) No Judgment has been entered in this matter to date.
- 3) Wife's Request for Order Filed 3/17/2026
 - a. On 6/2/2025, per the Findings and Order After Hearing filed 6/11/2025, Judge Costin
made a finding that the community property located at 1216 Newhall St. in San Francisco
has a value of \$840,000. The Court made the following orders: "6) On or before 9/30/25,
Husband shall pay to Wife a sum of \$135,828... In exchange, Wife shall quit-claim her
right, title, and interest to the home to Husband. After the successful completion of these

1 transactions, Husband shall be entitled to exclusive possession of the home, and Husband
2 shall be solely responsible for all mortgage payments on the home and shall hold Wife
3 harmless therefrom... If Husband is unable to pay Wife the sum of \$135,828, then it is
4 ordered that the home be placed on the market and sold. The net proceeds of the sale
5 (after the payment of the outstanding mortgage, closing costs, and real estate commission
6 fees) shall be equally divided between the parties.”

7 b. Now on for hearing is Wife’s Request for Order filed 3/17/2026. Wife states Husband has
8 not paid the equalizing payment set forth in the Findings and Order After Hearing filed
9 6/11/2025 and, to her knowledge, has not made any efforts to sell the Newhall residence.
10 Wife also states Husband will not communicate with her. Wife states she contacted
11 Husband’s attorney of record who told her he has also not been able to communicate with
12 Husband. Wife asks the Court to:

- 13 i. Order Husband to prepare the Newhall residence for sale no later than May
14 1, 2026;
 - 15 ii. Order Husband to forthwith cooperate with realtor Mima Tin of Real Estate
16 Broker Firm Keller Williams Santa Clara Valley, including executing a
17 listing agreement, preparing the Newhall residence for sale, signing any and
18 all documents necessary to prepare the property to be listed, to list the
19 property, and sell the property within 48 hours of receipt of the documents;
 - 20 iii. Permit Petitioner to file an ex parte Request for Order asking the Court to
21 appoint the Clerk of the Court or Clerk’s Designee as elisor to sign any
22 documents on Husband’s behalf if Husband fails to comply with signing any
23 documents necessary to effectuate the orders set forth above;
 - 24 iv. Order the proceeds of the sale of the home be divided equally pursuant to the
25 Findings and Order After Hearing filed 6/11/2025; and
 - 26 v. Award Wife \$3,000 in attorney's fees sanctions pursuant to Family Code
27 section 271, payable from Husband's share of the net sale proceeds, because
28 Wife was required to file this Request for Order.
- 29

- 1 c. On 3/17/2026, Wife's attorney Kathleen Morgan filed a declaration. Ms. Morgan states
2 she has been hired by Wife through the low-fee panel of the San Francisco Bar
3 Association. Ms. Morgan states she is charging Wife \$250 per hour and she has spent 6
4 hours on this motion to date. Ms. Morgan anticipates Wife will incur a total of \$3,000 in
5 fees related to the instant motion.
- 6 d. On 3/18/2026, Wife filed a Memorandum in Support of Request for Order, citing Family
7 Code section 271.
- 8 e. Per the Proof of Electronic Service filed 3/18/2026, Wife's Request for Order and related
9 moving papers were emailed to Husband's attorney Crisostomo Ibarra on 3/18/2026.
- 10 f. At the prior 5/5/2026 hearing (per the Findings and Order After Hearing filed 6/1/2026),
11 Mr. Ibarra informed the Court he was not notified of Wife's Request for Order. The
12 Court found good cause to continue the hearing on Wife's 3/17/2026 Request for Order
13 to 7/2/2026 and ordered Wife's attorney to serve the Request for Order on both Husband
14 and Husband's attorney.
- 15 g. On 6/10/2026, Wife's attorney filed a Proof of Service indicating that Wife's Request for
16 Order and related moving papers, the Tentative Ruling Instructions, and the Findings and
17 Order After Hearing for the 5/5/2026 hearing date were mailed to Husband and
18 Husband's attorney.
- 19 h. Husband has not filed a Responsive Declaration to Wife's 3/17/2026 Request for Order.
- 20 4. Husband's Attorney's Motion to be Relieved as Counsel filed 4/10/2026
- 21 a. On 4/10/2026, Husband's attorney Mr. Ibarra filed a Motion to be Relieved as Counsel.
22 Mr. Ibarra states Husband has been unresponsive when discussing attorney compensation
23 and that his firm has tried to contact Husband by telephone and email but to no avail. Mr.
24 Ibarra states he served his motion on Husband by mail at Husband's last known address,
25 and that Husband confirmed by telephone and email within the past 30 days that his
26 address is current.
- 27 b. Mr. Ibarra's motion to be relieved as counsel was originally set to be heard on 6/16/2026.
28 On 4/17/2026, Mr. Ibarra filed a Request to Reschedule Hearing. On 4/24/2026, the
29 Court granted Mr. Ibarra's request to reschedule the hearing to 7/2/2026.

1 c. Per the Proofs of Service filed 4/17/2026, Mr. Ibarra's Motion to be Relieved as Counsel
2 as well as the Order on Request to Reschedule Hearing (setting the 7/2/2026 hearing
3 date) was emailed to Wife's attorney on 4/17/2026 and mailed to Husband on 4/17/2026.

4 d. Husband has not filed a response to Mr. Ibarra's motion to be relieved as counsel.

5 **B. Findings and Order**

- 6 1) Mr. Ibarra's request to be relieved as counsel is granted, effective immediately.
- 7 2) No later than 7/31/2026, Husband shall complete all reasonable preparations necessary to ready
8 the residence located at 1216 Newhall St., San Francisco, California 94124, for sale.
- 9 3) Mirna Tin of Real Estate Broker Firm Keller Williams Santa Clara Valley is hereby is appointed
10 as the real estate broker to assist the parties in preparing, listing, marketing, and selling the
11 Newhall residence.
- 12 4) Husband is ordered to fully cooperate with Ms. Tin regarding the home sale process, including
13 following all reasonable recommendations related to preparing the home for sale and signing all
14 documents necessary for the Newhall residence to be listed and sold within 48 hours of receipt of
15 a request for signature on such documents.
- 16 5) If Husband fails to sign any documents necessary for the Newhall residence to be listed and sold,
17 Wife may file an ex parte Request for Order asking the Court to appoint the Clerk of the Court or
18 Clerk's Designee as elisor to sign any such documents. Wife shall attach to any such ex parte
19 Request for Order a copy of the documents that require Husband's signature.
- 20 6) Effective immediately, both parties shall be CC'd on all communications with Ms. Tin.
- 21 7) The Court awards Wife \$3,000 in attorney's fees sanctions pursuant to Family Code section 271.
22 The sanctions shall be paid from Husband's share of the net sale proceeds.
- 23 8) Once the Newhall residence is sold, the net proceeds of sale (after payment of the outstanding
24 mortgage, closing costs, and real estate commission fees) shall be equally divided between the
25 parties, except that Wife shall receive an additional \$3,000 from Husband's share of the net sale
26 proceeds for the attorney's fees sanctions awarded above.
- 27 9) The Court will prepare the MC-053.
- 28 10) The Court will prepare the Findings and Order After Hearing.
- 29